

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air
Solutions, STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.

C.A. No. 2:25-cv-00405-RMG-MGB

**DEFENDANTS' RESPONSE TO PLAINTIFF'S MOTION FOR
DEFAULT JUDGMENT AS A TERMINATING SANCTION**

Defendants, by and through their undersigned counsel, submit this Response to Plaintiff's Motion for Default Judgment as a Terminating Sanction (ECF No. 235) and Supplement to Motion for Default Judgment (ECF No. 247.) For the reasons set forth below, Plaintiff's latest frivolous motion has no basis in fact or law and, is another example of Plaintiff wasting the resources of the Parties and the Court. Accordingly, Plaintiff's Motion should be denied and additional action taken to prevent continued abuse of the litigation process.

Once again, Plaintiff is burdening Defendants and the Court with a frivolous sanctions motion (her sixth in the last two months) leveling baseless accusations that, if made in any other context, would be defamatory. As explained below, her Motion has no merit, appears to be drafted by generative AI, and should be denied. To stop Plaintiff from filing baseless and repetitive motions, Defendants request that the Court do one or more of the following: (1) instruct Plaintiff that any future frivolous motions, including baseless requests for sanctions, will result in sanctions against her, up to and including dismissal of her lawsuit. (2) order Plaintiff to pay Defendants

attorneys' fees in having to respond to this and other frivolous motions; (3) require both parties to sign and attach generative AI certifications to filings in this case warranting that no artificial intelligence was used to draft each filing; and (4) suspend Defendants' duty to respond to duplicative or frivolous motions unless instructed to by the Court.

I. Plaintiff's Request for Sanctions Rests on False and Unsubstantiated Allegations of "Litigation Misconduct."

The judicial reassignment in this case fails to provide any basis for imposing sanctions against Defendants. Plaintiff points to the judicial reassignment as "a turning point" in the case that led to a pattern of procedural unfairness. (ECF No. 235 at 2.) Defendants did not request the judicial reassignment and do not know why the case was reassigned. But the reassignment had absolutely nothing to do with Defendants and cannot form the basis for any request for sanctions against Defendants.¹

Plaintiff's allegations of missing filings not appearing on the public docket also has nothing to do with Defendants and is not a basis for imposing sanctions. Her claim that Defendants falsely alleged that her Objections (filed at ECF No. 219) are untimely is itself false. Defendants agree that Plaintiff served her Objections via email on November 6, though they were not docketed with the Court until November 14, but even though served on November 6, Plaintiff's Objections were still untimely because they were not lodged within 14 days of the Court's Orders to which she was objecting as required by Fed. R. Civ. P. 72(a).

¹ Plaintiff filed a contemporaneous "Judicial Motion for Recusal", ECF No. 236, seeking the recusal of Magistrate Judge Mary Gordon Baker and District Judge Richard M. Gergel that contains many of same arguments as the instant Motion for Default Judgment as a Terminating Sanction. The instant Motion seems to be a repackaged version of the Recusal Motion but with another unfounded request for sanctions. Both motions are frivolous.

Plaintiff continues to bring up the flash drive that she submitted to the Court and accuses Defendants of misconduct related to the flash drive. She claims that this flash drive has “video evidence documenting cyber intrusion, data interference, and conduct relevant to retaliation and the events giving rise to this lawsuit” but yet she still has not produced a copy of that video evidence to Defendants, despite multiple requests for it. (ECF No. 235 at 3.) As this Court has made clear, “a *pro se* litigant cannot satisfy discovery obligations by filing materials with the Court.” (ECF No. 251 at 4.) Defendants contacted the Clerk’s office and were advised that they could not obtain a copy of the flash drive. It is unclear if Plaintiff’s only copy of these files was on the flash drive. But, if that is the case, then Defendants are open to options for obtaining a copy of the files on that flash drive by whatever means the Court finds appropriate. However, Defendants have not engaged in any misrepresentations regarding the flash drive. It is a fact that, as of this filing, Plaintiff has failed to produce the files on the flash drive to Defendants, despite her repeated claims that the flash drive contains files critical to proving her case.

Plaintiff’s disagreement with Judge Baker’s ruling on the Hunt Law subpoena also does not form a basis for imposing any sanctions against Defendants. Plaintiff’s disagreement with Judge Baker’s ruling has nothing to do with Defendants. In fact, in a showing of good faith and to rid Plaintiff of the notion that there was any type of agreement between Defendants’ counsel and her former attorney, Defendants produced to Plaintiff all communications that counsel had with Hunt Law on October 16, 2025 at DEF 136 to 264, even though those communications have no bearing whatsoever on her claims in this case. That Plaintiff would now seek terminating sanctions related to the Hunt Law subpoena against Defendants when Defendants have provided her with all communications with her former attorney demonstrates the frivolity and lack of any factual basis for her Motion, which is itself made in bad faith.

Plaintiff continues to complain about Defendants' conduct with respect to her request to depose Jeff Womack. This issue has been addressed extensively by Defendants at ECF Nos. 215 and 230. Defendants advised Plaintiff in advance of November 5 that Womack remained out on medical leave and would not be appearing for his deposition. (Ex. A). She moved forward with other depositions on those dates and so there was no "waste of resources" due to Womack's failure to appear. As of this date, Mr. Womack remains out of work and has yet to return from medical leave.

Plaintiff continues to accuse Defense counsel of misconduct with respect to Brian Fogarty. This issue has been addressed by Defendants at ECF No. 230. Again, Brian Fogarty, a former employee of Curtiss Wright, contacted Curtiss Wright about his deposition and Curtiss Wright connected him with defense counsel. On October 27, Brian Fogarty contacted Defense Counsel. He advised counsel that he was recovering from surgery and would not be able to appear for his deposition, supposedly scheduled for November 5, and so counsel advised Plaintiff of this fact.² Plaintiff then asked Defense Counsel to advise Mr. Fogarty that she would like him to return his witness fee. Defense counsel advised Mr. Fogarty to return the check, and, evidently, he did so.³ There is nothing improper about an attorney for one party speaking to an unrepresented third-party witness. It happens in nearly every case.

In fact, Plaintiff herself has contacted current Curtiss Wright employee, Jeff Womack, multiple times related to her intent to take his deposition, despite the fact that Jeff Womack is on protected leave and Plaintiff was asked not to contact him. Plaintiff's contact with Womack is clear

² Plaintiff did not send Defense Counsel copies of a deposition subpoena for Brian Fogarty with a deposition dated after October 27.

³ In addition to returning the check for his witness fee, Plaintiff has evidently continued to contact Mr. Fogarty to request that he pay her for the cost she incurred to mail the subpoena to him of \$17.14. (ECF No. 242.)

from the text messages that Plaintiff attached to previous filings. (ECF No. 56-8.) Defense counsel attempted to facilitate Fogarty's deposition and did nothing to "prevent Fogarty from complying with the subpoena" as Plaintiff alleges.⁴

Plaintiff claims that Defendants filed "defamatory and unsupported assertions" in their response filed at ECF No. 229, but she fails to explain how any of Defendants' assertions are false, other than to say that she "possesses factual and documentary evidence—including the flash drive submitted to the Court—that corroborates her claims." (ECF No. 235 at 10.) Plaintiff does this frequently. When presented with clear assertions that she cannot disprove, Plaintiff baselessly states that they are "false" or "unsupported" and files a frivolous motion for sanctions. Defendants' assertions speak for themselves and were supported by exhibits demonstrating their veracity.

Plaintiff has failed to establish prejudice from any actions of Defendants. Plaintiff claims that Defendants' unspecified conduct "combined with docket suppression [and] judicial reversals" has harmed her ability to litigate this case. (ECF No. 235 at 5.) Defendants are not responsible for the Court's docket or the opinions of the Court, and so Plaintiff fails to point out any prejudice that she experienced caused by Defendants. In fact, Plaintiff's argument that she was prejudiced because she could not access a copy of *her own motion* is false and misleading. Plaintiff has a stamped copy of her motion; she sent it to Defense Counsel. (Ex. B). For this reason alone, her Motion for Sanctions should be denied.

⁴ Plaintiff failed to serve Defense counsel with a copy of Fogarty's deposition subpoena or any of the third-party deposition subpoenas that she served. Counsel repeatedly asked Plaintiff if she had served any third-party deposition subpoenas, but she failed to provide clear answers. (Ex. C) On the dates of her depositions, Defendants did not know who might show up for deposition. Defense counsel had no contact with Brian Fogarty prior to October 8, or October 21, the date he was originally noticed to appear, and so they could not have "interfered" with his deposition. Counsel was prepared with questions for Fogarty in the event that he did appear on October 21. It was not until after that date that he reached out to Curtiss Wright about the deposition subpoena.

Plaintiff's claim that Defense Counsel has engaged in a "pattern of misrepresentation" is not supported by the record evidence. Specifically, Plaintiff claims that counsel acted inappropriately by "including unrelated lawsuits in their Response." (ECF No. 235 at 5.) Presumably, she is referring to Defendants' reference to Plaintiff's motions to recuse judges in contemporaneous cases. Plaintiff also argues that Defendants accused her of refusing to produce a video that she was questioned about during her deposition on October 28. The video at issue is one that was evidently on the flash drive that Plaintiff submitted to the Court. (Ex. D, Nelson Dep. 36:3-40:11) Counsel did question Plaintiff extensively about the contents of the video because she has not produced it and Defendants do not have it and want to know what is on it. Had she produced a copy to Defendants, counsel would not have needed to question her as extensively. But, the questioning about the video was entirely appropriate and is not evidence of any bad faith because Plaintiff is relying on that video to support her claims in this case.⁵ The portion of the transcript regarding the video is produced at Ex. D and demonstrates that there was nothing improper about the questioning of Plaintiff related to the video that she still has not produced. (Ex. D, Nelson Dep. 29:7-40:11.)⁶

Plaintiff's assertion that Defendants' "refusal to participate in discovery" is what led her to pursue all the third-party discovery that she has pursued in this case is knowingly and demonstrably false, and is clearly reasoning that Plaintiff copied from Defendants' briefing about Defendants' decision to seek third-party discovery after Plaintiff objected to providing basic discovery relevant to her damages. (ECF No. 217.) The evidence that Plaintiff has been seeking from third parties

⁵ Plaintiff falsely claims that Defense counsel claimed to have "watched the video." Counsel has not seen the video at issue because Plaintiff refuses to produce it and testified in her deposition that she would not produce it. (Ex. D, Nelson Dep. 33:21-34:2.)

⁶ This video is one of the items sought by Defendants in their pending Motion to Compel at ECF No. 207.

like Verizon, Honda, Apple, and Google relates to her claims of cyber intrusion to which Defendants have no knowledge and no evidence. In fact, Plaintiff started pursuing this third-party discovery more than four months before she ever served her August 18, 2025, First Requests for Production and First Set of Interrogatories on Defendants. Plaintiff requested third-party subpoenas as soon as April 2, 2025. (ECF. No. 30.) Plaintiff's argument that she was "forced" to pursue third-party discovery because of Defendants' "refusal to participate in discovery" is a misrepresentation to the Court.

II. The Alleged Factual Bases for Imposing Sanctions Against Defendants Do Not Exist.

Plaintiff argues that a court can impose sanctions for failure to comply with discovery orders, but she fails to identify any discovery orders that Defendants have not complied with, and she cannot because Defendants have complied with all discovery orders. She also argues that sanctions can be imposed for failure to appear for a deposition. Presumably, she is referring to non-party witness Jeff Womack's failure to appear, but Plaintiff fails to cite any authority that a party can be sanctioned for a non-party witness's failure to appear for deposition, especially here where the failure to appear was justified by the witness's medical leave. She also seeks sanctions for spoliation or withholding of evidence, but she fails to point to any evidence that Defendants have spoliated or withheld from production. Instead, she points to "missing dockets and suppressed filings" which, if such exist at all, are not caused by Defendants.

As explained above, Defendants did not engage in any discovery abuse by asking Plaintiff in her deposition about a video related to her employment that she has not produced. Again, lodging it with the Court is not the same as producing it to Defendants, especially when Defendants cannot access the flash drive she submitted.

III. The Cases Plaintiff Relies on To Support Sanctions Do Not Justify Any Sanctions in this Case.

None of the cases Plaintiff cites support the imposition of sanctions against Defendants. In fact, many of the cases do not stand for the propositions for which they are cited. For example, Plaintiff cites *Chambers v. NASCO, Inc.*, 501 U.S. 32, 46 (1991) to explain when the Court has authority to enter default judgment as a sanction. Not only is *Chambers* not a case about that type of sanction, default judgment is not mentioned a single time in that opinion.⁷ Plaintiff also wrongly attributes a quote to the *Chambers* opinion that appears nowhere in the opinion, when she argues that the Court has the authority to award default judgment when misconduct “permeates the entirety of the litigation.” That quote is not present in *Chambers*, and as discussed, *Chambers* does not mention default judgment.

This exposes an underlying issue that Defendants respectfully ask the Court to address. From the volume of briefs that she has filed to the speed at which she responds to motions to the fact that she is misquoting caselaw, it has become apparent that Plaintiff is using generative artificial intelligence to draft motions and file them in masse which is leading to frivolous and unnecessary filings and putting an undue burden on Defendants, who must respond to each motion.⁸

⁷ *Chambers* awards full attorneys’ fees when a party filed multiple frivolous motions, and pursuing unnecessary discovery, excessively increasing the cost of litigation. *Chambers*, 501 U.S. at 58. It is Plaintiff, not Defendants, in this case who is guilty of the sanctionable conduct that underlies the cases cited in Plaintiff’s Motion.

⁸ In Plaintiff’s Supplemental Motion for Default Judgement, she does not even remove clearly AI generated instructions from her briefing. This is clear in Section II(a) where she stated that Defendants “failed to provide full and complete responses to outstanding discovery requests including [describe categories, e.g. ‘documents concerning comparators, internal investigation notes, and communications with third-party entities relevant to Plaintiff’s claims’], which were already overdue at the time of the original motion.” See ECF No. 247 p. 2

Plaintiff also cites *Anderson v. Found. for Advancement, Educ. & Emp't, Inc.*, 155 F.3d 500, 504 (4th Cir. 1998), which actually highlights the inappropriateness of her behavior rather than the Defendants. In *Anderson*, default judgment was granted after a party repeatedly refused to provide even the most basic information in discovery and would respond to discovery requests stating that each request was “unduly burdensome,” “harassing,” or would be supplied at a later date. The court issued multiple orders directing a party to supply this information and the court only held the party in default after it set a final deadline for those documents to be produced, on threat of default, which came and went without production.⁹ *Id.* at 503. These facts are unlike anything attributable to Defendants who have produced seven current employees for deposition, responded to sixty discovery requests, and produced over 1400 pages of documents to Plaintiff. If anything, these facts echo Plaintiff’s refusal to provide basic information related to her claims and damages, including Plaintiff’s withholding of documents that she would later use in her own depositions.

Finally, Plaintiff’s reliance on *United States v. Shaffer Equip. Co.*, 11 F.3d 450, 462 (4th Cir. 1993), is also misplaced. Plaintiff cites this case to support her argument that a court has the inherent authority to impose terminating sanctions, but the *Shaffer* court cautions that “since orders dismissing actions are the most severe, such orders must be entered with the greatest caution.” *Id.* at 462. In that case the district court dismissed the case because the government attorneys actively concealed that their key fact witness, responsible for creating the majority of the underlying evidence in the case, was under civil and criminal investigation for reasons that directly impugned his candor and undermined the reliability of evidence. *Id.* at 461. This is clearly unlike any fact in

⁹ *Belk v. Charlotte-Mecklenburg Bd. of Educ.*, 269 F.3d 305, 348 (4th Cir. 2001) is also a case where a party is sanctioned for openly defying court ordered discovery. As discussed extensively, Defendants have not done so.

this case. Further, even with these egregious facts, the Fourth Circuit reversed the district court, finding that dismissal was too harsh a sanction for the misconduct at issue. *Id.* at 463. *Shaffer* does not support the imposition of any sanctions here.

As the foregoing makes clear, it appears likely that Plaintiff has not read the cases that she relies on, and that they are included in her Motion because artificial intelligence recognizes that they are associated with the term “terminating sanctions.”

IV. Plaintiff Has Not Demonstrated any Prejudice from The Alleged Misconduct of Defendants.

Plaintiff claims that Defendants’ actions related to Brian Fogarty’s deposition and otherwise “withholding of evidence” have prevented her from presenting evidence of her damages. Plaintiff does not claim that Fogarty would have offered any testimony about her damages, nor does she point to any evidence related to her damages that Defendants have withheld. The reality is that Plaintiff has been thwarting Defendants’ efforts to obtain discovery to quantify her damages by refusing to produce her tax returns, refusing to produce evidence of her subsequent income and objecting to the subpoena to Amentum for her subsequent employment records, and objecting to the subpoena to her therapist for whom she allegedly sought treatment for her claimed emotional distress. To the extent Plaintiff has been hampered in her efforts to present evidence of damages it is of her own doing and choosing.

V. Conclusion

Defendants seek relief from Plaintiff’s frivolous and harassing AI-generated filings. Defendants respectfully request that the Court:

- A. Deny Plaintiff’s Motion for Default Judgment as a Terminating Sanction;
- B. Award Defendants Attorneys’ Fees incurred in responding to this motion;

- C. Require both parties to sign and attach generative AI certifications to filings in this case warranting that no artificial intelligence was used to draft each filing;
- D. Suspend Defendants' duty to respond to duplicative or frivolous motions unless instructed to by the Court.

Respectfully submitted this 16th day of December, 2025

s/ T. Chase Samples

T. Chase Samples (Fed. I.D. No. 10824)

Email: Chase.Samples@jacksonlewis.com

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: Joseph.Valenza@jacksonlewis.com

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Phone: 864-232-7000

ATTORNEYS FOR DEFENDANTS

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air
Solutions,
STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.

C.A. No. 2:25-cv-00405-RMG-MGB

CERTIFICATE OF SERVICE

The undersigned certifies that on December 16, 2025, a copy of the foregoing **DEFENDANTS' RESPONSE TO PLAINTIFF'S MOTION FOR DEFAULT JUDGMENT AS TERMINATING SANCTION** has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

[REDACTED]

Pro Se Plaintiff

s/ T. Chase Samples

T. Chase Samples

Dated: December 16, 2025

Exhibit A

From: Debra Nelson [REDACTED] >
Sent: Monday, October 20, 2025 8:04 PM
To: Valenza, Joseph V. (Greenville)
Subject: Re: Nelson v. Curtiss Wright Electro Mechanical Corp., et al

Noted

On Mon, Oct 20, 2025 at 4:51 PM Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com> wrote:

Ms. Nelson,

This message is in response to your email dated Sunday, October 19, seeking to confirm the deposition of Jeff Womack; and two emails dated Friday, October 17, seeking additional untimely discovery that you previously sought on October 15th. I will respond to each below.

In Sunday's email you state that you received information that Mr. Womack has returned to work, is available for deposition, and requested that we confirm by COB on October 20 that he will be produced for deposition on a mutually agreeable date. You advised that if we maintained our position that Mr. Womack is currently unavailable and will not be produced that you will file a Motion to Compel his attendance.

As we have stated on numerous occasions, Mr. Womack is out on medical leave through November 2, but we will produce him for deposition once he returns provided that -- at that point -- his deposition does not exceed the 10 depositions allowed to you by the Federal Rules of Civil Procedure. To the extent that you intend to file a Motion to Compel because we maintain that Mr. Womack is on medical leave and cannot be produced for a deposition tomorrow, the Court has already ruled on this issue and denied your motion on Friday. If you have not yet received a copy of that Order, please let us know, and we can provide you a copy. If you file a duplicative Motion to Compel after we have made you aware of this, and we are forced to respond, then we will move for attorneys' fees for the unnecessary costs incurred in responding to the motion.

In Friday's emails you stated that your untimely requests for (1) the unredacted DARs of Brian Fogarty and Michelle Broman-Bolton and (2) Badge-Entry and Exit Logs (Facility Access Reports) for the period of October 6-17, 2025, for 8 Curtiss-Wright employees were not subject to Rule 34(b)(2)(A), but you proceeded to formally serve Defendants with these requests for production pursuant to Rule 34. Under Rule 34, Defendants are entitled to 30 days to respond to written discovery. Because these discovery requests were served less than 30 days before the close of discovery, they are untimely and Defendants do not intend to respond to them.

That said, Defendants produced the unredacted DARs that you requested in the document production we sent on October 15, and so you should now have those documents.

And your request for badge swipes for certain Curtiss-Wright employees who you are deposing this week covering the last few weeks have no bearing whatsoever on your claims in this case. Your request seemingly serves no purpose other than to burden Curtiss-Wright or seek personal information about the deponents. Defendants do not intend to produce these records or respond further to your untimely discovery.

**Joseph V. Valenza**

Attorney at Law

Jackson Lewis P.C.

15 South Main Street
Suite 700

Greenville, SC 29601

Direct: (864) 672-8078 | Main: (864) 232-7000

Joseph.Valenza@jacksonlewis.com | www.jacksonlewis.com

From: Debra Nelson [REDACTED] >

Sent: Sunday, October 19, 2025 12:00 PM

To: Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>; Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>

Subject: Nelson v. Curtiss Wright Electro Mechanical Corp., et al

Subject: Deposition of Jeff Womack

Dear Mr. Samples and Mr. Valenza,

I am writing to confirm the attendance of Jeff Womack at his deposition in the above-referenced matter.

In our previous communications, you asserted that Mr. Womack was unavailable for deposition as he was on medical leave. However, I have recently received information that Mr. Womack has, in fact, returned to work at Curtiss-Wright and is available to be deposed.

As Mr. Womack is a current employee of your client, Curtiss-Wright, I request that you confirm by COB **October 20, 2025**, whether you will produce him for his deposition on a mutually agreeable date.

Please be advised that if you maintain Mr. Womack is unavailable and will not be produced, I will proceed with filing a Motion to Compel his attendance with the Court.

Thank you for your prompt attention to this matter.

Sincerely,

Debra Nelson Plaintiff, Pro Se

Exhibit B

From: Debra Nelson <[REDACTED]>
Sent: Thursday, November 6, 2025 3:10 PM
To: Samples, T. Chase (Greenville); Valenza, Joseph V. (Greenville)
Subject: Filed Motions for 11.6.2025
Attachments: Filed Notice of Opposition to Defense Motion to Compel.pdf; Objections to Magistrate Judge Orders ECF 192_194.pdf

Counsel,

See copies of motions filed with the court toady 11/6/2025

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON	)	
	)	C.A. No.: 2:25-CV-00405-RMG-MGB
Plaintiff,	)	
	)	
v.	)	
	)	
Curtiss Wright Electro Mechanical Corp.	)	
d/b/a Curtiss-Wright Steam and Air Solutions	)	
STEPHANIE LANIER, and	)	
SHANE SABLITSKY,	)	
	)	
Defendants.	)	

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**PLAINTIFF'S NOTICE OF OPPOSITION TO DEFENDANT'S MOTION TO
COMPEL**

Plaintiff **Debra Nelson**, appearing pro se, respectfully submits this Notice of Opposition to Defendant's *Motion to Compel Plaintiff's Discovery Responses*. The issues raised by Defendant are already addressed and refuted in Plaintiff's pending *Motion to Compel Discovery, for Protective Order, and for Sanctions* (ECF ____). For the reasons stated therein, and as set forth below, Defendant's Motion should be **denied in its entirety**.

I. Flash Drive and Video Evidence

Plaintiff has made every reasonable effort to comply with discovery and provide the materials requested by Defendant. The electronic files and videos at issue were previously disclosed to the Court or identified as available for inspection. Plaintiff attempted multiple times to upload and transmit copies; however, technical barriers beyond Plaintiff's control — including data-access issues associated with Apple's platform — have prevented direct transfer.

Plaintiff has repeatedly informed Defendant that the complete materials are available through the Clerk of Court or by formal request for inspection. Despite this, Defendant's counsel has traveled to Charleston on three separate occasions — October 21, October 28, and November 5, 2025 — yet

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made no effort to retrieve the flash drive or request access to the Court-held materials. Defendant's continued accusations that Plaintiff is withholding evidence, while refusing to obtain materials already lodged with the Court, constitutes bad-faith harassment and an improper attempt to shift its own discovery responsibilities onto Plaintiff.

II. Irrelevant and Invasive Discovery Requests

Defendant's Motion seeks disclosure of materials that have **no bearing on the claims or defenses** in this action.

1. **Business and Financial Records.** Plaintiff's privately held business was established years before her employment with Curtiss-Wright and is wholly unrelated to the allegations here. Plaintiff's business and financial records are not relevant to discrimination or retaliation claims and do not mitigate the damages caused by Defendant's conduct.
2. **Tax Returns.** Defendant's demand for Plaintiff's tax returns and personal financial documents exceeds the permissible scope of discovery under Rule 26(b)(1). Income-tax records enjoy a qualified privilege and are discoverable only when directly relevant and unavailable through less intrusive means—conditions not met in this case.
3. **Medical and Psychotherapy Records.** Defendant's attempt to compel production of psychotherapy or medical records is an invasion of privacy and violates the psychotherapist–patient privilege recognized in *Jaffee v. Redmond*, 518 U.S. 1 (1996). Plaintiff expressly withholds consent to any release of such records.
4. **Resume and Employment Information.** Defendant's demand for Plaintiff's resume is a further act of retaliation intended to harm her professional reputation. Plaintiff's employment history was discussed extensively during deposition, and Defendant's

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counsel—who already caused Plaintiff's termination from Amentum Corporation—has no legitimate basis for seeking additional personal data under the guise of discovery.

III. Psychotherapist–Patient Privilege and Scope of Emotional-Distress Claim

Plaintiff's claim of emotional distress does not constitute a waiver of her psychotherapist–patient privilege. Plaintiff's emotional injuries arise from the ongoing retaliation, privacy violations, and fear caused by Defendant's conduct and its aftermath—including repeated surveillance, property intrusions, and harassment that have continued for more than a year. These harms are capable of proof through Plaintiff's testimony, contemporaneous documentation, and corroborating witness evidence. Defendant's request for "all mental-health records" is a gross overreach that violates the Supreme Court's decision in *Jaffee v. Redmond*, 518 U.S. 1 (1996), and exceeds the scope of discovery permitted under Rule 26(b)(1). The psychotherapist–patient privilege is absolute and protects confidential communications between Plaintiff and her therapist from disclosure. Plaintiff has not placed any specific diagnosis or course of treatment in controversy, and she expressly maintains her privilege and withholds consent to any production of therapy records. Defendant's blanket demand is therefore improper, disproportionate, and intended to further invade Plaintiff's privacy rather than obtain relevant information.

Respectfully submitted 6th of November, 2025,


Debra Nelson
Plaintiff, Pro Se



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CERTIFICATE OF SERVICE

I hereby certify that on this 6th day of November, 2025, I served a true and correct copy of the foregoing **Plaintiff's Notice of Opposition to Defendant's Motion to Compel** by email addressed to:

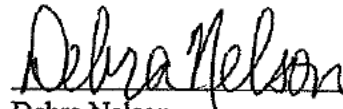
T. Chase Samples, Esq.

chase.samples@jacksonlewis.com

Joseph V. Valenza, Esq.

joseph.valenza@jacksonlewis.com

Respectfully submitted 6th of November, 2025,


Debra Nelson
Plaintiff, Pro Se



IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON

Plaintiff,

Y.

**Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air Solutions
STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.**

C.A. No.: 2:25-CV-00405-RMG-MGB

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PLAINTIFF'S OBJECTIONS TO MAGISTRATE JUDGE'S ORDERS (ECF NOS. 192 & 194)

ADDRESSED TO THE HONORABLE RICHARD M. GERGEL PURSUANT TO
FED. R. CIV. P. 72(a)

I. INTRODUCTION

Plaintiff **Debra Nelson**, appearing pro se, respectfully submits these objections to two orders entered by Magistrate Judge Mary Gordon Baker:

(1) the **October 20, 2025 Order (ECF No. 192)** denying Plaintiff's Motion to Compel and Motion to Strike related to the subpoena issued to nonparty **Hunt Law LLC**, and

(2) the **October 21, 2025 Order (ECF No. 194)** denying Plaintiff's Motions to Compel Apple Inc. and granting Apple's Motion for Protective Order.

Both rulings are **clearly erroneous and contrary to law** under Fed. R. Civ. P. 72(a) because they misrepresent the procedural record, contradict **Judge Molly H. Cherry’s prior discovery authorizations**, and improperly restrict Plaintiff’s lawful access to evidence central to her claims.

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II. BACKGROUND

A. The Hunt Law LLC Subpoena (Order ECF 192)

On or about **September 25, 2025**, Plaintiff submitted a proposed subpoena to Hunt Law LLC seeking non-privileged records showing any financial or communication link between Curtiss-Wright, its counsel, and Plaintiff's former attorney.

The subpoena was held under **judicial review for nine days**, during which time **Judge Cherry's case manager confirmed that "the Judge has to review it before it can be signed."**

Following that review, the Clerk issued and mailed the subpoena, bearing the Court's signature and official caption. Plaintiff filed **Notices of Service** on October 8 and 9, 2025 (ECF Nos. 164 & 171).

Judge Baker's subsequent statement that "this Court did not expressly approve the subpoena" is **factually inaccurate and contradicted by the record and Court process**. The subpoena's issuance followed a judicial authorization step, not a self-issued filing.

B. Apple Protective Order (Order ECF 194)

Plaintiff's subpoena to Apple Inc. sought **device-level technical logs and access records** relevant to claims of cyber intrusion and unauthorized monitoring. Apple produced limited materials and moved for a **Protective Order**.

Without conducting an evidentiary hearing or requiring a specific showing of "good cause" under **Rule 26(c)**, Judge Baker **granted Apple's motion and prohibited Plaintiff from issuing additional discovery requests to Apple**.

This order conflicts with Judge Cherry's prior authorization for third-party subpoenas, exceeds the narrow protections permitted under Rule 26, and effectively blocks access to critical electronic evidence necessary to prove Plaintiff's claims of stalking, retaliation, and data compromise.

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III. STANDARD OF REVIEW

Under Fed. R. Civ. P. 72(a), a district judge must “modify or set aside any part of a magistrate judge’s order that is clearly erroneous or contrary to law.” A finding is clearly erroneous when, although there is evidence to support it, the reviewing court is left with the definite and firm conviction that a mistake has been committed. *United States v. U.S. Gypsum Co.*, 333 U.S. 364 (1948).

IV. ARGUMENT

A. Judge Baker’s Finding That the Court Did Not Approve the Hunt Law Subpoena Is Clearly Erroneous

The docket, issuance timeline, and direct statement from the case manager confirm that the subpoena was reviewed and approved by Judge Cherry prior to issuance.

Because the Clerk cannot issue a Rule 45 subpoena for a pro se party without judicial review, Judge Baker’s later finding is demonstrably false and unsupported by any evidence.

B. The Hunt Law Order Improperly Reverses Prior Judicial Authorization

Judge Cherry’s standing order permitting Plaintiff to issue third-party subpoenas remains in effect. Judge Baker’s order, which denies the validity of that authorization without notice or findings, constitutes a *de facto* reversal of a judicial act and is contrary to established law governing magistrate review.

C. The Apple Protective Order Lacks Good Cause and Violates Rule 26(c)

Rule 26(c)(1) allows a protective order only for “good cause” shown, and requires the movant to demonstrate specific prejudice or harm. Apple presented no affidavit, evidence, or argument of undue burden beyond general inconvenience.

Plaintiff’s discovery requests were narrowly tailored to her Apple ID and specific device logs within relevant timeframes. The magistrate’s conclusion that Apple “fully complied” and that

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further discovery constituted “undue burden” is unsupported and contrary to Fourth Circuit precedent.

By prohibiting Plaintiff from issuing *any* further discovery to Apple, the Order imposes an overbroad restriction inconsistent with Rule 45(d)(3)(A) and **Virginia Dep’t of Corr. v. Jordan**, 921 F.3d 180, 189 (4th Cir. 2019).

D. Both Orders Deny Plaintiff Access to Material Evidence and Prejudice Her Case

Plaintiff’s case involves claims of electronic interference, retaliation, and unauthorized access to private data. Limiting subpoenas to former counsel and Apple effectively prevents Plaintiff from obtaining the very records that could corroborate these allegations.

Such blanket restrictions deprive Plaintiff of due process and the right to obtain relevant, non-privileged discovery in support of her claims.

V. RELIEF REQUESTED

For these reasons, Plaintiff respectfully requests that the Honorable **Richard M. Gergel**:

1. **Vacate or modify** Magistrate Judge Baker’s Orders dated October 20 and 21, 2025 (ECF Nos. 192 & 194);
2. **Reinstate Judge Cherry’s authorization** allowing Plaintiff to issue third-party subpoenas under Rule 45;
3. **Vacate or lift the Protective Order** granted to Apple Inc. and permit continued discovery limited to relevant technical data and device-access logs;
4. Direct that future discovery disputes be reviewed by the District Judge or reassigned to ensure continuity and fairness; and
5. Grant such further relief as the Court deems just and proper.

Respectfully submitted 6th of November, 2025,


Debra Nelson

Case No. 2:25-CV-00405-RMG-MGB

Plaintiff, Pro Se



CERTIFICATE OF SERVICE

I hereby certify that on this 6th day of November, 2025, I served a true and correct copy of the foregoing **Plaintiff's Objection to Magistrate Judge's Orders (ECF NOS. 192 & 194)** by email addressed to:

T. Chase Samples, Esq.

chase.samples@jacksonlewis.com

Joseph V. Valenza, Esq.

joseph.valenza@jacksonlewis.com

Respectfully submitted 6th of November, 2025,

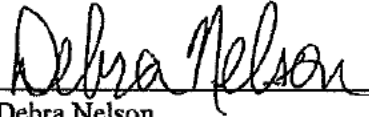

Debra Nelson
Plaintiff, Pro Se



Exhibit C

From: Samples, T. Chase (Greenville)
Sent: Thursday, October 16, 2025 2:15 PM
To: Debra Nelson
Cc: Valenza, Joseph V. (Greenville)
Subject: RE: Nelson v. Curtiss Wright Electro Mechanical Corp., et al

Ms. Nelson:

The urgency is because the depositions are on Tuesday, and you have yet to tell us which former employees you are planning to depose, despite us asking you for this information for at least two weeks. You're correct that we have no control over these witnesses, but we do have a chance to cross examine them. And so, I'd like to know who will be there so that we can be prepared to ask any questions the company may have since they no longer work for CW.

The Court does not copy us on the subpoenas, and so I don't know which subpoenas have been issued and who you are expecting will be there.

We are wasting each other's time by going back and forth over email. Please give us the names via email or call me to explain why you cannot do so.

Also, you still have not responded to my request for a call to discuss the 30(b)(6) deposition topics.

From: Debra Nelson [REDACTED]
Sent: Thursday, October 16, 2025 11:28 AM
To: Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>
Subject: Re: Nelson v. Curtiss Wright Electro Mechanical Corp., et al

This urgent request for non employee witnesses is alarming. You said in an email that you have no control over no employee witnesses. So why do you need this information and why now?



T. Chase Samples
Attorney at Law

Jackson Lewis P.C.
15 South Main Street
Suite 700
Greenville, SC 29601
Direct: (864) 672-8034 | Main: (864) 232-7000
Chase.Samples@jacksonlewis.com | www.jacksonlewis.com

On Thu, Oct 16, 2025, 9:51 AM Debra Nelson [REDACTED] > wrote:

I filed it with the court to get the subpoenas

On Thu, Oct 16, 2025 at 9:44 AM Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com> wrote:

Ms. Nelson,

I have checked with our staff, and we have no record of you sending us the list of former employees whom you intend to depose next week. All you've provided is the attached list of current employees. Here's my simple ask: What are the names of the other witnesses you intend to depose next Tuesday?

With respect to the 30(b)(6) topics, we need to have a discussion about those. As I mentioned to you on October 7, we are charged with providing a witness who can speak to the topics you have designated. But, some of your topics are vague and unclear. Other topics are outside the knowledge of Curtiss Wright. I think a 5 minute call should clear that up and save the back and forth over email. I'm available today until 2:00 and anytime tomorrow morning. Please call me at the number below.



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From: Debra Nelson [REDACTED] >

Sent: Thursday, October 16, 2025 10:31 AM

To: Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>

Subject: Re: Nelson v. Curtiss Wright Electro Mechanical Corp., et al

Sir please don't email me on this great Thursday morning with threats. I sent you what you requested. If you can't find it then you need to say so. As far as following Judge Cherry's orders you have done the opposite. You have been operating in bad faith since the October 7th hearing.

Make clear what it is that you are requesting. I am out of town until Sunday. Once you respond with what you need me to send AGAIN I will do so when I get back. Thanks

On Thu, Oct 16, 2025 at 9:26 AM Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com> wrote:

Ms. Nelson:

We write again to consult with you on the scope of your proposed Rule 30(b)(6) topics and to seek clarification as to certain topics so that we can prepare the witness for the deposition. This is now the fourth email seeking to consult with you and seeking clarification, including emails dated October 6, October 13, and October 15. You continue to ignore our requests. In my October 13 email, I took the liberty of trying to clarify the topics myself to make sure that we were on the same page. A copy of my notes is attached again for reference. It might be easier to start our discussion with this version of the

document. If you continue to ignore our request to consult, then we will have no choice but to move for a protective order and will not be producing anyone on October 21 for the corporate representative deposition. Judge Cherry made clear that we need to consult with each other and work out these issues, and we are committed to trying to do that, but you have to engage with us. Please contact me today or tomorrow to discuss.

We have also asked you at least four times which former employees you intend to depose on October 21. (See emails dated September 29, October 8, October 14, October 15) You have not answered that basic question. We need to know this information for two reasons: 1) we need to be prepared to cross examine those witnesses and 2) we need to ensure that you are not taking more than ten depositions, as allowed under the Federal Rules. You have not copied us on any deposition subpoenas for these former employees. To be clear, we object to you taking more than ten depositions. You have noticed six depositions for October 21 that we are aware of (Cody Diehl, Jerod Froetschner, Joe Caboup, Patrick Ingram, Michelle Broman Bolton, and the 30(b)(6) designee), but you have also indicated that you plan to depose some former employees after these depositions, and so please identify those former employees today. And, as stated previously, we will agree to a limited extension of the discovery deadline to allow you to depose Jeff Womack, but he will not be appearing on October 21 because he is out on medical leave.

Again, we think that a phone call may be easier to work through these issues. I'm generally available today until 2:00 and tomorrow morning. Please let me know what time works best for you.

**T. Chase Samples**

Attorney at Law

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Greenville, SC 29601

Direct: (864) 672-8034 | Main: (864) 232-7000

Chase.Samples@jacksonlewis.com | www.jacksonlewis.com

From: Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>**Sent:** Monday, October 13, 2025 5:25 PM**To:** Debra Nelson [REDACTED]**Cc:** Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>**Subject:** RE: Nelson v. Curtiss Wright Electro Mechanical Corp., et al

Ms. Nelson:

Following up on the email below and as referenced during our discussion after the hearing last week, Curtiss Wright has some questions related to your proposed 30(b)(6) topics and seeks clarification so that we can make sure that we have a designee who is prepared to address the topics you've identified.

I have taken my questions below and put them in the margins in your 30(b)(6) notice and also made some revisions in track changes to clarify the meaning of certain topics.

Please review and then let's schedule a brief call this week to make sure that we are on the same page.

**T. Chase Samples**

Attorney at Law

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Chase.Samples@jacksonlewis.com | www.jacksonlewis.com

From: Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>

Sent: Monday, October 6, 2025 6:22 PM

To: Debra Nelson [REDACTED] >

Cc: Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>

Subject: RE: Nelson v. Curtiss Wright Electro Mechanical Corp., et al

Ms. Nelson:

We are writing to meet and confer regarding the scope of your Rule 30(b)(6) deposition notice. Rule 30(b)(6) requires that "the serving party and the organization must confer in good faith about the matters for examination." The Rule also requires a plaintiff to identify the topics with "reasonable particularity" because we have to make sure that we are producing a witness who is prepared to address the topics that you've identified.

To that end, there are several topics where we aren't exactly sure what you are referring to or intending to ask about and we need some clarification from you. We'd be glad to schedule a quick call to talk through these issues, if that would be easier. Otherwise, please provide some clarification so that we can have a witness ready to address these topics. Those topics where we need additional clarification from you, include:

- Topic D: You state, "HR obtain statements from Stephanie Lanier, April James, or other employees about me in . . ." It is unclear if you want to know whether HR obtained statements about you from these individuals and what event you are referring to wherein HR requested statements. Please clarify to what event or time period that you are referring to and what, specifically, you are seeking from the witness so that we can prepare the witness to respond to this topic.
- Topic G. You state, "Was I instructed to be avoided by a coworker following our prior altercation." It is unclear here who the coworker is you are referring to and whether you are asking if Curtiss Wright instructed you to avoid the co-worker or vice versa. Please clarify this topic. Likewise, you ask "Were there other complaints about the same coworker's failure to perform assigned duties, and . . ." Please identify this co-worker by name and clarify whether you are seeking anything more than "other complains about the same coworker's failure to perform assigned duties."
- Topic H: Regarding social media monitoring and use, the CW representative will be able to address whether Curtiss Wright, as a company, has monitored, viewed, or tracked your social media use. The representative will not, however, be able to address whether any individual employees of Curtiss-Wright may have viewed your publicly available social media profiles. Please confirm that we are on the same page here in terms of the scope of your inquiry.
-

In addition to these questions, there are several topics that we ask you to revise or limit so that we can avoid the need to file a motion for protective order with the Court. Specifically:

- Topic E: You ask whether CW or its outside counsel communicated with Bonnie Hunt or Hunt Law. Curtiss Wright can address whether it had any communications with Hunt law, but a corporate representative is not going to have knowledge of whether Jackson Lewis did so, and so the witness will not be able address that part of your topic. We ask that you remove the reference to Jackson Lewis from this topic. I will also note that you have requested via discovery copies of all communications between Jackson Lewis and Hunt law. Though we maintain that such communications have no relevance to the claims in this case, we intend to produce those communications to clear up any concerns you may have related to those communications.
- Topic E: You ask for billing records related to time spent communicating with Hunt law. It is unclear whose billing records you are referring to. If you are seeking the billing records of Jackson Lewis, then those would be protected by the attorney-client privilege and we ask that you withdraw this topic.

In addition, as Joe pointed out in his email below from last week, we are construing the document request that accompanied the 30(b)(6) notice as a fourth request for production of documents and will respond within the 30 days allotted for document requests.

We look forward to your response.



T. Chase Samples

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From: Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>

Sent: Wednesday, October 1, 2025 11:41 AM

To: Debra Nelson [REDACTED] >

Cc: Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>

Subject: RE: Nelson v. Curtiss Wright Electro Mechanical Corp., et al

Good morning, Ms. Nelson,

We received your Amended Notice of the Rule 30(b)(6) Deposition of Curtiss-Wright, which includes an Exhibit B that was not part of the original notice. Exhibit B asks the witness to produce documents that were not requested in any of your prior Requests for Production. A Rule 30(b)(6) deposition notice may not be used to compel the production of documents from a named party; such requests must be made pursuant to Rule 34. See *Hart v. Safeco Ins. Co.*, 2017 U.S. Dist. LEXIS 58855 (D.S.C. Apr. 18, 2017) (recognizing that Rule 34 provides the procedure for obtaining documents from a party to a case and rejecting argument that document requests can be accomplished through a deposition notice). Under Rule 34, a party has 30 days to respond to requests for documents. Accordingly, to the extent Exhibit B seeks documents not previously requested in your first three Requests for Production, we will treat Exhibit B as a Fourth Request for Production of Documents, and will respond under Rule 34 by October 30th.

**Joseph V. Valenza**

Attorney at Law

Jackson Lewis P.C.

15 South Main Street

Suite 700

Greenville, SC 29601

Direct: (864) 672-8078 | Main: (864) 232-7000

Joseph.Valenza@jacksonlewis.com | www.jacksonlewis.com

From: Debra Nelson [REDACTED] >**Sent:** Tuesday, September 30, 2025 5:45 PM**To:** Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>; Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>**Subject:** Nelson v. Curtiss Wright Electro Mechanical Corp., et al

Counsel:

Attached is the amended notice of depositions

Exhibit D

Debra E Nelson
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

Page 1

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

Debra Nelson,

Plaintiff,

V.

C.A. No. 2:25-cv-00405-DCN-MHC

Curtis Wright Electro Mechanical

Corp. d/b/a Curtiss-Wright Steam

and Air Solutions, Stephanie Lanier,

and Shane Sablotsky,

Defendants.

DEPOSITION: Debra E. Nelson

DATE: October 28, 2025

TIME: 10:20 a.m. EST

LOCATION: Veritext Legal Solutions

28 Bridgeside Boulevard, Suite 205

Mount Pleasant, SC

TAKEN BY: Counsel for the Plaintiff

REPORTED BY: Rosemary F. Grogan, CSR, RPR

Debra E Nelson
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

Page 26 1 Q. Let me rephrase that. Any professional or -- 2 do you have any certifications related to your work? 3 A. Other than my NDT certification, level 2. 4 Q. So you got NDT level 2 certification? 5 A. Yes. 6 Q. Anything else? 7 A. That's it. 8 Q. Do you have any social media accounts? 9 A. I do. 10 Q. What are your social media accounts? 11 A. Instagram, Facebook, TikTok. 12 Q. Any others? 13 A. That's the only thing that's on social media 14 professional. That's all. 15 Q. What are your user names for each of those 16 social media platforms? 17 A. I'm not sure. 18 Q. You don't know what your user name is for -- 19 A. No. I don't have it memorized. It's 20 remembered in the phone. 21 Q. How many user names do you have for Instagram? 22 A. I only have one -- no. Well, I only have one 23 account that I currently use. The others I think I 24 might have deleted them. I think I only have one 25 primary account.	Page 28 1 Q. Okay. Well, did you sell any T-shirts? 2 A. I did not. I think I started too late 3 because, like, by the end, the momentum was kind of 4 dying off. If I implemented it sooner, I believe I 5 would have done well. 6 Q. Okay. Other than the accounts you had 7 associated with that business venture, have you used any 8 other Instagram accounts in the last five years? 9 A. No. I was not really into the other stuff. 10 It was kind of like a Facebooker. 11 Q. How many Facebook accounts did you have? 12 A. I have one, two -- two. Well, no. Is it 13 accounts or pages? Two accounts, yes, but I only use 14 one really. The other one I was trying to link it to my 15 real estate investment business. Like you can just have 16 a real estate contact on one page because it was like 17 too much to put on my primary page so I decided to 18 separate it, but I'm not never on the other account, 19 so... 20 Q. Okay. So you have one primary account that 21 you still use? 22 A. Mm-hmm. 23 Q. Do you recall your user name for that? 24 A. It's probably my name. 25 Q. Debra Nelson?
Page 27 1 Q. For Instagram? 2 A. Mm-hmm. 3 Q. What is that? 4 A. What do you mean? 5 Q. What is the user name you have? Is it Debra 6 Nelson or Deb Nelson? 7 A. I don't know. I don't remember these things. 8 Q. Okay. You said you may have had others that 9 you deleted. Why did you delete them? 10 A. Because I used them or linked them to a 11 business that I was trying to do and I ended up 12 disbanding it so I got rid of the social media accounts. 13 Q. What was the business you were trying -- 14 A. I was trying to sell T-shirts, but that was a 15 big flop. 16 Q. When did you engage in that enterprise? Was 17 that before or after you worked at Curtiss-Wright or 18 while you were working there? 19 A. The idea started when I was working at 20 Curtiss-Wright and then after I left -- or after I was 21 kicked out, I continued to try to -- to try to develop 22 it. 23 Q. What kind of T-shirts were you selling? 24 A. It was about the -- the Montgomery, Alabama 25 riverfront fight. I loved that.	Page 29 1 A. Mm-hmm. 2 Q. Is that a yes? 3 A. Yeah. 4 Q. Did you have that account when you worked at 5 Curtiss-Wright? 6 A. Yes. 7 Q. Have you posted anything on that account 8 related to your employment or your claims in this 9 lawsuit? 10 A. I did post a video, but it was mostly about 11 the events that were happening surrounding, basically, 12 after I was terminated, the events that occurred after. 13 And it was more so I posted that video on my social 14 media accounts for safety reasons because I felt that 15 would keep me safe because I felt somebody was 16 potentially going to do me bodily harm. 17 Q. Why did you think that? 18 A. Because I had unknown people showing up at my 19 house. I had an unknown man standing in front of my 20 house at around 1 o'clock in the morning, just standing 21 there on the cul-de-sac not moving. I sat in my car to 22 watch to see what he was going to do and he was just 23 standing there not moving for several minutes. And I 24 said something ain't right, so I called the police. 25 Q. Okay. Did they ever arrest that man --

8 (Pages 26 - 29)

Debra E Nelson
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

Page 30	1 A. I don't know what happened to that man, but he 2 went away and I'm -- I'm alive. Like what reason would 3 this -- that right there was such a red flag. I was 4 like, oh, no, there's something not right about this. 5 Q. Do you know who that man was? 6 A. No, I don't know who he was. 7 Q. Do you have any reason to believe that he was 8 somehow affiliated with Curtiss-Wright? 9 A. I don't know who he's affiliated with. This 10 is what I'm saying. I don't know who was behind the 11 tracking, the stalking, and the intrusion into my 12 electronic devices. That's why I'm doing discovery. 13 But I can tell you this. None of this 14 occurred until after the complaints were made about 15 Curtiss-Wright to the Navy, to The White House, to the 16 Department of Justice, to the Department of Labor. I 17 tried contacting the FBI a couple of times about the 18 cyber crime. No response. 19 So none of this occurred until after the 20 complaints were made against Curtiss-Wright. 21 Q. Okay. And a little later in the deposition 22 I'm going to ask you a few more questions about those, 23 but I don't want to get too far afield because we were 24 talking about your social media accounts. 25 You said one of the reasons you posted that	Page 32	1 A. Yes. 2 Q. Okay. Do you have any evidence to indicate 3 that anyone at Curtiss-Wright was in any way connected 4 to that cell phone? 5 A. How would I know that? I don't know who -- 6 who is responsible. 7 Q. You don't have any evidence -- 8 A. Not yet. Discovery is still not complete. 9 Q. Let me finish my question. 10 You don't have any evidence to connect that 11 cell phone to Curtiss-Wright? 12 A. Not at the moment. 13 Q. Okay. You said you have a TikTok account. Do 14 you have one or more? 15 A. No, I think I've just got one. 16 Q. Do you know your user name for that one? 17 A. No. 18 Q. Have you posted on TikTok anything about 19 Curtiss-Wright or your lawsuit? 20 A. I'll reiterate. I posted on all my social 21 accounts that video that detailed all the events that 22 were -- that were occurring, the stalking, the man and 23 the woman showing up at my front door, the -- me sending 24 mail to Washington, D.C. and it's been 10 days bouncing 25 back and forth between one process center in D.C. to
Page 31	1 video was to protect yourself from a person standing 2 outside your house. Any other evidence that you felt 3 like you were being stalked or surveyed [sic]? 4 A. Yes. I found a cell phone outside my bedroom 5 window. I turned it into the police. When I tried to 6 finally retrieve it, I could never get in touch with the 7 police officer that reported to the scene. The cell 8 phone was destroyed. They said it was a found item. I 9 specifically -- and I have a video where I told this 10 officer that this cell phone is tied to an active 11 lawsuit and I'm giving it to you to hold as evidence. 12 It's in the video. 13 Somehow that phone is labeled as a found/lost 14 item not evidence in an active lawsuit and it was 15 destroyed. 16 Q. So you don't have that cell phone anymore? 17 A. Nobody has the cell phone anymore. 18 Q. Do you know who that cell phone belonged to? 19 A. No, but it was from -- I talked to an IT 20 person and they said that phone was probably used to get 21 into your router so they can hack into your device, 22 because my printer was hacked also. 23 Q. Your printer at your house? 24 A. Mm-hmm. 25 Q. Is that a yes?	Page 33	1 another process center in D.C. And then after I tried 2 to contact the postal manager or whatever, then the mail 3 was finally delivered. 4 But before then, it kept on bouncing -- from 5 the tracking, it kept bouncing back and forth between 6 distribution centers and Washington, D.C. I talked 7 about that. 8 What else did I talk about? About my car 9 being hacked into. I have a video of that. Two videos 10 of that, actually. Cell phones, turning them off and 11 then they turn on by themselves. 12 Q. Have you talked about all those things in the 13 videos that you posted online? 14 A. Yes, because as long as I stayed quiet, I know 15 that prevented -- that would keep me in danger. So long 16 I said something and made it public, then the likelihood 17 of something happening to me was lessened. 18 Q. Do you still have that video? 19 A. I do, and I've already submitted it to the 20 court. 21 Q. But you have not produced a copy directly to 22 defendants in this case, correct? 23 A. It was submitted to the court and you can 24 obtain that information from the court. 25 Q. So that's a yes to my question, you have not

9 (Pages 30 - 33)

Debra E Nelson
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

Page 34 1 produced it directly to defendants? 2 A. No, and I'm not going to. 3 Q. How is the video that you posted on social 4 media related to Curtiss-Wright in any way? 5 A. I will say this again. I said the video 6 detailed events that were happening to me. The only 7 reference I made in that video about Curtiss-Wright is 8 that I worked that company. I was bullied by a male 9 engineer, which is fact, it is documented, and that I 10 was terminated, which is also facts and documented. 11 So that was the only reference made by me to 12 Curtiss-Wright. 13 Q. You said you were bullied by a male engineer. 14 Who are you referring to? 15 A. Brian Foley. 16 Q. I'm going to come back to Brian later on and 17 ask you some questions about that. 18 Anything else that you've you posted or that 19 you said in that video that's related to your employment 20 at Curtiss-Wright? 21 A. That's the only thing about Curtiss-Wright I 22 said. 23 Q. Okay. You also said you had two videos of 24 your car. Do you still have those videos? 25 A. I have all my videos.	Page 36 1 Q. That happened in Arizona; is that right? 2 A. It happened in Arizona. 3 Q. Okay. So the two car video, you said you 4 still have those? 5 A. Yes. 6 Q. Have you produced those in this case? 7 A. It's with the court. Every video pertaining 8 to me be surveilled, my devices being hacked were all 9 submitted to the court. 10 Q. Just to clarify, you have not provided them 11 to -- 12 A. No. 13 Q. -- Defendants in this case? 14 Do you intend to do so? 15 A. No. You can get it from the court. 16 Q. Have you made any other videos related to your 17 claims in this case? 18 A. Yes. 19 Q. What other videos did you make? 20 A. Everything. I journal everything. I document 21 everything in case somebody tries to kill me other 22 people have those videos. 23 Q. What other videos have you made related to 24 this case? 25 A. Everything, like the -- the police officer
Page 35 1 Q. Do you believe the car videos are in any way 2 related to your lawsuit in this case? 3 A. I believe all the surveillance and all the -- 4 oh, I had a woman follow me when I went to training for 5 my job. I was in the hallway. I went to get ice or 6 something. I'm coming back to my room and I noticed 7 this White lady in the hallway and I, you know, saw her. 8 And then when she -- you know, my -- my -- I locked eyes 9 on her for a longer time, right? 10 And when she realized I saw her, she started 11 like leaning up against the wall like she's trying to 12 hide. I was like (nonverbal sound), and what's that? I 13 was like the woman is following me. She's spying on me. 14 So I didn't think it was funny at the time, 15 but I went downstairs to the manager and I told him 16 there's a lady in the hallway spying on me. I said I 17 don't feel safe. I need to move to another room. So 18 they moved me to another room. And then later I called 19 back and I spoke with the general manager and he said he 20 saw it on the video. 21 Q. Do you know who that lady was? 22 A. No. 23 Q. Do you have any reason to think she was in any 24 way affiliated with Curtiss-Wright? 25 A. I don't know who she is affiliated with.	Page 37 1 showing up at my house, the -- the videos of my phone 2 not working. I'm recording videos on my iPhone and 3 there's no sound, so -- so there's several videos. So 4 they're blocking me from trying to -- 5 I post on social media sometimes and so if I 6 post a video -- and it can be about anything, they would 7 just disable my phone to where the videos have no sound. 8 My iPhone and then if I wanted to really post a video, I 9 would use my Android and most times that would work. 10 Q. So the videos that you've taken related to 11 Curtiss-Wright, have you given all those videos to the 12 court? 13 A. Yes. Anything that pertains to me being 14 surveyed [sic] me, me being followed, devices -- strange 15 devices appearing at my house, those were all given to 16 the court. And I also maintain copies in other places. 17 Other people have copies as well. 18 Q. You haven't given any of those videos to 19 defendants during discovery in this case, have you? 20 A. No, the -- I gave it -- I gave the court a 21 flash drive because there was so much videos and 22 documentation. Yeah, it would have been burdensome. 23 Q. Do you have any videos of your coworkers at 24 Curtiss-Wright? 25 A. Coworkers, no.

10 (Pages 34 - 37)

Debra E Nelson
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

Page 38 1 Q. Did you take any videos on the premises at 2 Curtiss-Wright? 3 A. No. 4 Q. Have you taken any witness statements or done 5 any interviews that you've recorded? 6 A. No, I haven't recorded any statements. 7 Q. Have you posted anything on LinkedIn about 8 your employment with Curtiss-Wright and this lawsuit? 9 A. I have. 10 Q. What have you posted? 11 A. I basically put information about the lawsuit 12 on there. 13 Q. Have you produced that information in this 14 case? 15 A. It doesn't exist. 16 Q. So you posted stuff about this lawsuit, but 17 then you say it doesn't exist? 18 A. Yes, because I was told to delete it. 19 Q. Who told you to delete it? 20 A. Bonnie Hunt. 21 Q. What did you post on LinkedIn that you've 22 since deleted? 23 A. I think I might have posted video. I might 24 have said not so nice things but they were all truthful. 25 Q. What things did you say?	Page 40 1 employment with Curtiss-Wright? 2 A. Yes. 3 Q. Any other posts that you made on LinkedIn that 4 you have? Any other posts about Curtiss-Wright that you 5 have since deleted? 6 A. No. 7 Q. Any other videos whether it be on TikTok or 8 Facebook or Instagram related to your employment with 9 Curtiss-Wright that you have deleted other than the ones 10 we've talked about? 11 A. No. 12 Q. All right. Ms. Nelson, I wanted to cover 13 that. I want to bring us back now to your work history. 14 We talked about Parker Aerospace, but just at a really 15 high level walk me through your work history as a NDT 16 inspector prior to coming to Curtiss-Wright? 17 A. Starting from when? 18 Q. The first NDT type job you had. 19 A. That was 13 years ago. 20 Q. Okay. Just walk me through, again high level, 21 the companies you've worked with during the last 13 22 years. 23 A. My first -- okay. You want to include my 24 military work? 25 Q. Yes.
Page 39 1 A. That they're racist. 2 Q. Anything else? 3 A. That they bullied me. 4 Q. Anything else? 5 A. That's it. 6 Q. Do you still have those videos? 7 A. There was no videos. Those were comments but 8 they -- they were deleted. 9 Q. Did you delete those before or after you filed 10 this lawsuit? 11 A. I don't know when she advised me. It could 12 have been before. I'm not sure, but she told me to take 13 the video down and, you know, all that kind of stuff. 14 Q. But you had at least reached out to Bonnie 15 Hunt about bringing this lawsuit at the time that -- 16 A. She was my attorney. I paid this lady to 17 represent me, which she ended up trying to sabotage me, 18 but yes, she was my attorney. 19 Q. Okay. But going back to my question, though, 20 you had retained her for the purpose of filing a lawsuit 21 against Curtiss-Wright at the time that she told you to 22 delete those videos? 23 A. Yes. 24 Q. And you had already filed a charge -- or 25 multiple charges with the EEOC related to your	Page 41 1 A. Okay. So I went in the military in 2000, as a 2 NDT technician. I retired in 2019. My first civilian 3 NDT job. Soil Consultants, Incorporated. 4 Q. And you said that job was in 2019? 5 A. No, that was in 2012 -- no. No, that was a 6 long -- that was longer than that, so it had to be 7 before 2008; maybe 2006 or '7. 8 Q. Okay. How long did you work for Soil 9 Consultants? 10 A. About a year. 11 Q. What was your position there? 12 A. I was a NDT tech, but I didn't have a lot of 13 hours. I was like level one and that was, you know, 14 entry level. 15 Q. Why did you leave that position? 16 A. It was dirty work. You worked outside a lot. 17 I would say it's a masculine job. 18 Q. What kind of testing were you doing in that 19 role? 20 A. We did a lot of X-ray, X-ray on construction 21 sites, did X-ray of wall plates. It was field work so a 22 lot of it was done outside. 23 Q. I may have asked you this but I don't remember 24 your answer. Why did you leave that job? 25 A. For more pay, better hours because that job

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